

		Plaintiff InsZone Insurance Services, LLC, moves to compel further responses from Defendant Daybreak Services, Inc., dba Daybreak Insurance Services to RFPs (Set One). For the following reasons, the motion is DENIED as moot. While these motions were pending, Defendants served second amended responses to the discovery at issue, including Defendant Capizzi II's second amended response to Form Interrogatories (Set One); Defendant Capizzi II's second amended response to RFPs(Set One); Defendant Daybreak's second amended response to Form Interrogatories (Set One); and Defendant Daybreak's second amended response to RFPs(Set One). (Le Decl. ¶ 2, Exs. A-D.) Defendants also produced approximately 1,900 documents responsive to those requests. (Le Decl. ¶ 3.) To the extent Plaintiff argues that Defendants should be ordered to comply with their statutory duty under section 2031.280(a) to identify which documents are responsive to which requests, Plaintiff submits no evidence to support that Defendants failed to comply with their statutory obligation. Arguments raised in briefs constitute the unsworn statements or testimony of counsel, which do not constitute evidence within the meaning of the Evidence Code. (<i>In re Zeth S.</i> (2003) 31 Cal.4th 396, 413, fn. 11; <i>see also In re Marriage of Pasco</i> (2019) 42 Cal.App.5th 585, 592; <i>DiCola v. White Brothers Performance Products, Inc.</i> (2008) 158 Cal.App.4th 666, 683.) <u>Sanctions</u> Plaintiff's request for sanctions is granted against Defendants Vincent A. Capizzi and Daybreak Services, Inc., dba Daybreak Insurance Services, jointly and severally. (<i>See</i> Code Civ. Proc., §§ 2030.300(d), 2031.310(c), Cal. Rules Ct., Rule 3.1348(a).) Defendants are ordered to pay sanctions in the amount of \$5,850.00, within 30 days of the service of the notice of ruling. Plaintiff to give notice.
5	Lauren ce vs. Mal cias	OFF CALENDAR
6	Blood vs. Huntin gton Beach Hospita l	Defendant Prime Healthcare Huntington Beach, LLC dba Huntington Beach Hospital's Motion to Compel Further Responses to Form Interrogatories (Set One) No. 17.1 is CONTINUED to AUGUST 20, 2026, at 01:30pm in Department C10. Defendant served Plaintiff Heather Jeane Blood, who is self-represented, with the moving papers on the motion by electronic service on May 8, 2026. California Rule of Court 2.251(c)(3)(B) provides that self-represented parties "are to be served by non-electronic methods unless they affirmatively consent to electronic service." There is no evidence in the record that Plaintiff, who is self represented, affirmatively consented to electronic service. To ensure that Plaintiff receives proper notice and due process, therefore, the hearing on the motion is continued to August 20, 2026 at 01:30pm in Department C10 (at least 16 court days plus 5 additional days for mailing). Defendant is ordered to serve Plaintiff with the moving papers by mail in a manner that provides Plaintiff with sufficient notice under the code based on the continued hearing date.
7	9 What ney, LLC vs. Ma yrock A	Continued from the June 11, 2026 hearing, the motion for attorney fees is GRANTED. Moving party shall give notice.